

TENTATIVE RULINGS for LAW and MOTION

January 16, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Two
Telephone number for the clerk in Department Eight

(530) 406-6787
(530) 406-6927

TENTATIVE RULING

Case: **ASI Savannah At Southport, LP v. McCowan-Veal**
Case No. CV-2025-3691

Hearing Date: **January 16, 2026** **Department Two** **1:30 p.m.**

Defendant Charmaine McCowan’s request for judicial notice is **GRANTED IN PART**. (Evid. Code, §§ 452, subd. (c), 453.) While the Court takes judicial notice of Exhibits B and C, the Court finds that Exhibit A is irrelevant to the Court’s determination of the demurrer. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 [“Any matter to be judicially noticed must be relevant to a material issue”].)

Defendant’s demurrer to plaintiff ASI Savannah At Southport, LP’s complaint is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) While plaintiff attached the Violence Against Women Act (“VAWA”) notices to its notice to pay rent in three days or surrender possession of premises in thirty days (“three-day notice”), the VAWA notices expired prior to their service on defendant. (Complaint, ¶¶ 9(e), 10(d), Exhibits 2 & 3 [indicating that the three-day notice was served on October 24, 2025, and the VAWA notices expired on June 30, 2017].) Therefore, plaintiff did not attach a “Notice of Occupancy Rights under the Violence Against Women Act,” *as prescribed and in accordance with directions provided by HUD*” and a “certification form, *in a form approved by HUD*” to the notice served on defendant. (24 C.F.R. § 5.2005, subds. (a)(1), (a)(2)(iii), emphasis added; Complaint, ¶ 9(e), Exhibit 2.) As the notice did not include the required VAWA notices pursuant to statute, it “cannot support an action for unlawful detainer.” (*DHI Cherry Glen Associates, L.P. v. Gutierrez* (2019) 46 Cal.App.5th Supp. 1, 9-10; 24 C.F.R. § 5.2005, subd. (a)(1).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Hotel Winters, LLC v. Zhou**
Case No. CV-2023-1836

Hearing Date: **January 16, 2026** **Department Eight** **1:30 p.m.**

Defendant's renewed motion to compel further discovery responses is **DENIED**. (Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290.) Defendant filed this motion more than 45 days after plaintiff Hotel Winters, LLC served its verified responses to the discovery requests identified in defendant's motion. (Zhou decl., ¶¶ 1-3 & 9; Mehta decl., ¶ 5.) As this 45-day deadline has expired, the Court lacks jurisdiction to rule on this motion to compel. (Code Civ. Proc., §§ 2030.300, subd. (c), 2031.310, subd. (c), 2033.290, subd. (c); see *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409-1410.)

Defendant's requests for issue and monetary sanctions are **DENIED**. (Code Civ. Proc., §§ 2023.010, 2023.030, 2030.300, 2031.310, 2033.290.) Plaintiff did not unsuccessfully oppose defendant's motion. (Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290.) Further, as the Court lacks jurisdiction to rule defendant's motion, the Court does not consider whether plaintiff engaged in the misuse of the discovery process. (Code Civ. Proc., §§ 2023.010, 2023.030.)

Plaintiff's request for sanctions is **DENIED**. (Code Civ. Proc., §§ 2023.010, 2023.020.) As the Court lacks jurisdiction to rule defendant's motion, the Court does not consider whether defendant failed to meet and confer in good faith or defendant misused the discovery process through her numerous communications and conditional demands. (Code Civ. Proc., §§ 2023.010, subds. (d), (f), & (g), 2023.020; Opposition, pp. 9-10.) To the extent that plaintiff seeks sanctions under sections 2030.300(d), 2031.310(h), and 2033.290(d), the Court finds that the circumstances make the imposition of sanctions – under these authorities – unjust. Specifically, plaintiff only makes a passing reference to requesting monetary sanctions under these sections. (See Opposition, p. 10.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV-2022-1963

Hearing Date: **January 16, 2026** **Department Eight** **9:00 a.m.**

On the Court’s own motion, defendant Ashok Patel’s motion for a protective order is **CONTINUED** to January 16, 2026, **at 1:30 p.m.** in Department Eight.

Defendant’s motion for a protective order is **GRANTED**. (Code Civ. Proc., §§ 2019.020, subd. (b), 2030.090.) The Court finds that, in the interest of judicial economy, the parties should not engage in the discovery process until the pleadings are settled. (Code Civ. Proc., § 2019.020, subd. (b); Dean decl., ¶¶ 24-29; Mehta decl., ¶¶ 3-4 & 8-9; Murray decl., ¶¶ 4-9.) Therefore, all discovery is **STAYED** until defendants Ashok Patel, Michael Olivas, David Fischbach, and Ken Patel are required to answer plaintiff’s complaint or further order by this Court.

Defendant’s request for sanctions is **DENIED**. (Code Civ. Proc., § 2030.090, subd. (d).) Defendant did not cite legal authority to support his request for monetary sanctions. (Dean decl., ¶¶ 30-34; see *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73-74.) Further, defendant’s notice of motion did not “identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought.” (Code Civ. Proc., § 2023.040.)

Plaintiff’s request for sanctions is **DENIED**. (Code Civ. Proc., § 2030.090, subd. (d).) Defendant did not unsuccessfully make this motion for a protective order. (*Ibid.*)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
Case No. CV-2023-0312

Hearing Date: **January 16, 2026** **Department Eight** **9:00 a.m.**

On the Court's own motion, plaintiff Xinyao Zhou's motion to compel compliance, compel further responses, issue preservation order, and request for monetary sanctions is **CONTINUED** to January 16, 2026, **at 1:30 p.m.** in Department Eight.

Defendant Hotel Winters, LLC's objections to plaintiff's notice of errata are **SUSTAINED IN PART**. Although plaintiff did not sign the notice of motion, she signed the motion. (See Motion, p. 18; Code Civ. Proc., § 128.7, subd. (a).) To the extent that she improperly failed to sign the notice of motion, the Court finds that this was a clerical error, capable of being corrected by a notice of errata. (See *Falahati v. Kondo* (2005) 127 Cal.App.4th 823, 834; *Flores v. Nature's Best Distribution, LLC* (2016) 7 Cal.App.5th 1, 6.) However, as to the separate statement attached to the notice of errata, this is a substantive change to plaintiff's motion. (Cal. Rules of Court, rule 3.1345(a) ["Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement"].) Therefore, the Court does not consider the separate statement filed with plaintiff's notice of errata. While defendant requests attorney's fees under Code of Civil Procedure section 2023.010 and 128.7, a request for sanctions under section 128.7 must "be made separately from other motions or requests." (Code Civ. Proc., § 128.7, subd. (c)(1).) Further, as to section 2023.010, defendant does not identify which subdivision of this statute plaintiff violated by filing an improper notice of errata. (See Code Civ. Proc., § 2023.010.)

Defendant's opposition to and request to strike plaintiff's supplemental declaration is **DENIED**. "The general rule of motion practice...is that new evidence is not permitted with reply papers." (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) However, plaintiff's supplemental declaration and the exhibit attached thereto did not address "substantive issues in the first instance but only filled gaps in the evidence created by the...opposition." (*Id.* at p. 1538.)

Plaintiff's motion to compel compliance, compel further responses, issue preservation order, and request for monetary sanctions is **DENIED**. (Code Civ. Proc., §§ 2031.310, 2031.320.) First, as to plaintiff's request to compel compliance, defendant did not fail to permit the "inspection, copying, testing, or sampling in accordance with [their] statement of compliance." (Code Civ. Proc., § 2031.320, subd. (a); Zhou decl., ¶ 4, Exhibit C.) In the identified verified responses, defendant stated that when the individual who has access to responsive information is medically able, defendant will search and produce non-privilege responsive documents in its possession, custody, or control. (Zhou decl., ¶ 4, Exhibit C, RFP nos. 1-4, 6, & 10-11.) Plaintiff has not shown that defendant has not complied with this statement. (Code Civ. Proc., § 2031.320, subd. (a); see Mehta decl., ¶ 3.)

Second, as to plaintiff's request to compel further responses, based on the evidence presented, it appears that the parties had a written agreement to extend plaintiff's deadline to file a motion to compel further. (Code Civ. Proc., § 2031.310, subd. (c); Zhou decl., ¶ 8, Exhibit F; Mehta decl., ¶ 9, Exhibit F; Zhou suppl. decl., ¶ 5, Exhibit A.) However, plaintiff did not submitted a meet and confer declaration showing a reasonable and good faith attempt at an information resolution regarding defendant's *responses* to the identified requests for production. (Code Civ. Proc., §§ 2031.310, subd. (b)(2), 2016.040; Zhou decl., ¶¶ 14-15, Exhibits H & I.)

Finally, as to plaintiff's request for a preservation order, plaintiff has failed to provide sufficient legal authority to support this request. (*Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73-74; see also *Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1223; *Cedars-Sinai Medical Center v. Superior Court* (1998) 18 Cal.4th 1, 11-12.)

Plaintiff's request for sanctions is **DENIED**. (Code Civ. Proc., §§ 2031.310, 2031.320.) Defendant did not unsuccessfully oppose this motion.

Defendant's request for sanctions is **GRANTED**, in the amount of **\$8,370.00** against plaintiff. (Code Civ. Proc., §§ 2031.310, 2031.320, 2023.010; Mehta decl., ¶¶ 27-29, 31.) The Court declines to award sanctions for time not yet incurred. The Court finds a reasonable hourly rate for Mr. Mehta is \$465. (See *Heritage Pacific Financial, LLC, supra*, 215 Cal.App.4th at p. 1004 ["The reasonable hourly rate is that prevailing in the community for similar work"]; Mehta decl., ¶ 31 ["This Court previously awarded Counsel an hourly rate of \$465.00"].) Plaintiff shall pay the sanction by **February 17, 2026**.

The notice of motion provides notice of this Court's tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2021). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV-2023-0312

Hearing Date: **January 16, 2026** **Department Eight** **1:30 p.m.**

Plaintiff Xinyao Zhou’s motion for leave to file demurrer and amended motion to strike is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 430.40, subd. (b), 435, subd. (b)(1).) In her moving papers, plaintiff did not provide sufficient legal authority to support her request for leave to file a demurrer and an amended motion to strike. (See *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73-74; see also Code Civ. Proc., § 1008, subd. (b); Zhou decl., ¶¶ 3-5.) The Court does not consider new legal authority provided for the first time in plaintiff’s reply. (*Balboa Ins. Co. v. Aguirre* (1983) 149 Cal.App.3d 1002, 1010 [“The salutary rule is that points raised in a reply brief for the first time will not be considered unless good cause is shown for the failure to present them before”].)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2021). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

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